

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
CASEY CLARKE,

Plaintiff,

-against-

POLICE OFFICER STANLEY BAEZ, Shield 15980,
SERGEANT MELVIN MOULTRIE, Shield No. 2183,
POLICE OFFICER DINERCY PINALES, Shield No.
20470, JOHN AND JANE DOE 1-10,

Defendants.
----- X

SUMMONS

Index No.:

Plaintiff designates BRONX
County as the place of trial.

The Basis of Venue is:
Location of Occurrence

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 5, 2018

Yours, etc.



CAITLIN ROBIN, ESQ.

Caitlin Robin and Associates, PLLC

Attorney for Plaintiff

30 Broad Street, Suite 702

New York, New York 10004

(646)-524-6026

TO: POLICE OFFICER STANLEY BAEZ
Shield 15980
47th Precinct
4111 Laconia Avenue

Bronx, NY 10466

SERGEANT MELVIN MOULTRIE,
Shield No. 2183
Patrol Services Bureau
1 Police Plaza, Room 1308
New York, New York 10007

POLICE OFFICER DINERCY PINALES
Shield No. 20470
47th Precinct
4111 Laconia Avenue
Bronx, NY 10466

JOHN AND JANE DOE 1-10
47th Precinct
4111 Laconia Avenue
Bronx, NY 10466

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX----- X
CASEY CLARKE,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

POLICE OFFICER STANLEY BAEZ, Shield 15980,
SERGEANT MELVIN MOULTRIE, Shield No. 2183,
POLICE OFFICER DINERCY PINALES, Shield No.
20470, JOHN AND JANE DOE 1-10,

JURY TRIAL DEMANDED

Defendants.
----- X

Plaintiff, CASEY CLARKE, by his attorneys, Caitlin Robin & Associates, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution. On October 14, 2017, at approximately 10:00 p.m., plaintiff Casey Clarke was subjected to an unlawful stop, frisk, search, detention, and false imprisonment, while lawfully present in the vicinity of White Plains Road and East 222nd Street in Bronx, New York. Additionally, the defendant police officers subjected plaintiff to excessive force when they, amongst other things, tasered the plaintiff, beat him with batons and pushed him to the ground. Thereafter, the defendant police officers denied plaintiff the right to a fair trial by forwarding false information to the District Attorney's Office. Plaintiff was deprived of his constitutional rights when the individual defendants unlawfully stopped, questioned, frisked, searched, unlawfully arrested, used excessive force, and denied the plaintiff the right to a fair trial in violation of the Fourth and Fourteenth Amendments to the United States Constitution and in violation of New York State Law.

VENUE

2. Venue is proper before this Court because the police misconduct and civil rights violations giving rise to this action occurred in Bronx County.

PARTIES

3. Plaintiff Casey Clarke is a resident of the State of New York.

4. POLICE OFFICER STANLEY BAEZ, Shield 15980, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

5. On the date of the subject incident, POLICE OFFICER STANLEY BAEZ, Shield 15980, was assigned to the 47th Precinct.

6. POLICE OFFICER STANLEY BAEZ, Shield 15980, is being sued in her individual and official capacities.

7. SERGEANT MELVIN MOULTRIE, Shield No. 2183, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

8. On the date of the subject incident, SERGEANT MELVIN MOULTRIE, Shield No. 5304, was assigned to the 47th Precinct.

9. SERGEANT MELVIN MOULTRIE, Shield No. 2183 is being sued in his individual and official capacities.

10. POLICE OFFICER DINERCY PINALES, Shield No. 20470,, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

11. On the date of the subject incident, POLICE OFFICER DINERCY PINALES, Shield No. 20470, was assigned to the 47th Precinct.

12. POLICE OFFICER DINERCY PINALES, Shield No. 20470, is being sued in his individual and official capacities.

13. POLICE OFFICER JOHN AND JANE DOE 1-10, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

14. On the date of the subject incident, POLICE OFFICER JOHN AND JANE DOE 1-10, was assigned to the 47th Precinct.

15. POLICE OFFICER JOHN AND JANE DOE 1-10, is being sued in his individual and official capacities.

16. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

17. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

STATEMENT OF FACTS

18. On October 14, 2017, at approximately 10:00 p.m., plaintiff was lawfully standing in the vicinity of White Plains Road and East 222 Street in Bronx, New York when the defendant police officers unlawfully approached plaintiff without reasonable suspicion or probable cause.

19. At no time prior to being stopped by the officers did plaintiff commit a crime or behave in a manner that gave the police officers a reasonable and objective basis to believe he had committed or was committing a crime.

20. Suddenly, without any provocation or legal justification, the defendant police officers forcibly grabbed plaintiff and threw him down to the ground and began tasing plaintiff in the body causing plaintiff to suffer serious physical causing plaintiff to suffer injuries to face, head, eyes, body, legs, and knees.

21. At no point in time did plaintiff resist arrest in any way.

22. The defendant police officers then unlawfully handcuffed plaintiff, forcibly lifted him off the ground, placed him in the back seat of the police vehicle, and began to transport him to the 47th precinct.

23. During the ride to the 47th Precinct, however, it was determined that Plaintiff was injured so badly from the Defendant Officers actions that they took him to Jacobi Medical Center instead.

24. Plaintiff was treated for numerous injuries inflicted by the defendant police officers, including but not limited to injuries to his face, head, neck, body, legs, and knees at Jacobi Medical Center.

25. Thereafter, on October 15, 2017, plaintiff was discharged from Jacobi Medical Center and transported to the 47th precinct.

26. At the 47th precinct, plaintiff was fingerprinted, photographed, and unlawfully detained in a holding cell.

27. Thereafter, plaintiff was transported to Bronx Central Booking.

28. The defendant police officers falsely stated to the Bronx County District Attorney's Office that plaintiff had committed a crime despite knowing that they lacked a legal and a factual basis to allege that plaintiff committed any crime.

29. On August 15, 2017, at approximately 10:00 p.m., after approximately 24 hours in police custody, plaintiff was arraigned in Bronx Criminal Court and the Judge released Mr. Clarke on his own recognizance.

30. Plaintiff was unlawfully charged with Disorderly Conduct, Obstructing Governmental Administration, and Resisting Arrest.

31. Thereafter, on approximately October 18, 2017, after plaintiff was released from custody, plaintiff was forced to seek out further medical treatment from Montefiore Hospital for the injuries inflicted by the defendant police officers.

32. Plaintiff complained to the medical staff that his head, face and knee, among other things, were injured by the defendant police officers.

33. Thereafter, plaintiff was forced to appear in Court on approximately 4 occasions before all charges against plaintiff were dismissed and sealed on or about January 31, 2018.

34. As a result of the injuries inflicted by the defendant police officers, plaintiff was unable to work at his job during October of 2017 because of the cuts and bruises to his face and head.

35. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, false arrest, denial of fair trial, and excessive force used against plaintiff.

36. The unlawful stop, question, frisk, search, false arrest, false imprisonment, unlawful seizure, denial of fair trial, and excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

**FIRST CAUSE OF ACTION PURSUANT TO 42 USC § 1983 FOR VIOLATIONS OF
PLAINTIFF'S FOURTH AMENDMENT, FIFTH AMENDMENT AND FOURTEENTH
AMENDMENT RIGHTS**

37. The plaintiff repeats, reiterates and realleges each and every allegation set forth above with the same force and effect as if more fully set forth at length herein.

38. That on the aforementioned date, the individually named police officer defendants, while acting under the color of law and the color of their authority as New York City Police Officers, wrongfully, unlawfully and without provocation or justification stopped,

questioned, frisked, seized, unlawfully searched, falsely arrested, and falsely imprisoned the Plaintiff.

39. That on the aforementioned date, the individually named police officer defendants, while acting under the color of law and the color of their authority as New York City Police Officers, egregiously and irreparably violated Plaintiff's right to be free from unreasonable search and seizure under the Fourth Amendment, right to Due Process under the Fifth Amendment, and right to be free from deprivation of liberty under the Fourteenth Amendment of the United States Constitution.

40. The individually named police officer defendants' actions were malicious and evidenced a callous and reckless disregard for, and deliberate indifference to Plaintiff's constitutional rights, specifically his right to Due Process under the Fifth Amendment and his Fourth Amendment right to be free from unreasonable search and seizure, from pretrial deprivations of liberty and from prosecution without probable cause.

41. The individually named police officer defendants owed a duty of care towards the Plaintiff and were required to use reasonable diligence to ensure that Plaintiff's arrest and detention were constitutional.

42. The individually named police officer defendant's actions and omissions were negligent and reckless.

43. As a direct and proximate result of the individually named police officer defendant's actions and omissions, Plaintiff has suffered damages, including but not limited to deprivation of liberty, pain and suffering, extreme mental and emotional distress, loss of income, costs and disbursements and other losses not yet ascertainable.

44. Plaintiff is informed and believes and thereon alleges that the defendants' actions were willful, malicious, intentional, oppressive, reckless, and/or were done in willful and conscious disregard of Plaintiff's rights, welfare and safety, thereby justifying damages against the Defendants in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

SECOND CAUSE OF ACTION FOR FALSE ARREST AND FALSE IMPRISONMENT

45. The plaintiff repeats, reiterates and realleges each and every allegation set forth above with the same force and effect as if more fully set forth at length herein.

46. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

47. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

48. Defendants were at all times acting under the color of law and the color of their authority as New York City Police Officers.

49. As a direct and proximate result of the individually named police officer defendant's actions and omissions, Plaintiff has suffered damages, including but not limited to deprivation of liberty, pain and suffering, extreme mental and emotional distress, loss of income, costs and disbursements and other losses not yet ascertainable.

50. Plaintiff is informed and believes and thereon alleges that the defendants' actions were willful, malicious, intentional, oppressive, reckless, and/or were done in willful and conscious disregard of Plaintiff's rights, welfare and safety, thereby justifying damages against the Defendants in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

THIRD CAUSE OF ACTION FOR UNLAWFUL STOP, QUESTION, AND FRISK

51. The plaintiff repeats, reiterates and realleges each and every allegation set forth above with the same force and effect as if more fully set forth at length herein.

52. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

53. Defendants were at all times acting under the color of law and the color of their authority as New York City Police Officers in stopping, frisking, and searching, plaintiff without any reasonable suspicion of criminality or other constitutionally required grounds.

54. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution

55. Defendants were at all times acting under the color of law and the color of their authority as New York City Police Officers.

56. As a direct and proximate result of the individually named police officer defendant's actions and omissions, Plaintiff has suffered damages, including but not limited to deprivation of liberty, pain and suffering, extreme mental and emotional distress, loss of income, costs and disbursements and other losses not yet ascertainable.

57. Plaintiff is informed and believes and thereon alleges that the defendants' actions were willful, malicious, intentional, oppressive, reckless, and/or were done in willful and conscious disregard of Plaintiff's rights, welfare and safety, thereby justifying damages against

the Defendants in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

FOURTH CAUSE OF ACTION FOR UNLAWFUL SEARCH

58. The plaintiff repeats, reiterates and realleges each and every allegation set forth above with the same force and effect as if more fully set forth at length herein.

59. The illegal approach, pursuit, stop and search inside plaintiff's, pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

60. Defendants lacked probable cause to search plaintiff.

61. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

62. Defendants were at all times acting under the color of law and the color of their authority as New York City Police Officers.

63. As a direct and proximate result of the individually named police officer defendant's actions and omissions, Plaintiff has suffered damages, including but not limited to deprivation of liberty, pain and suffering, extreme mental and emotional distress, loss of income, costs and disbursements and other losses not yet ascertainable.

64. Plaintiff is informed and believes and thereon alleges that the defendants' actions were willful, malicious, intentional, oppressive, reckless, and/or were done in willful and conscious disregard of Plaintiff's rights, welfare and safety, thereby justifying damages against the Defendants in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

FIFTH CAUSE OF ACTION FOR DENIAL OF RIGHT TO FAIR TRIAL

65. Plaintiff repeats, reiterates and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein.

66. Defendants were at all times acting under the color of law and the color of their authority as New York City Police Officers when they manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

67. Defendants were at all times acting under the color of law and the color of their authority as New York City Police Officers when they filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

68. Defendants were at all times acting under the color of law and the color of their authority as New York City Police Officers when they signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

69. In withholding/creating false evidence against plaintiff and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

70. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

71. As a direct and proximate result of such acts, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment, humiliation, and deprivation of his rights under the laws of the State of New York and the United States Constitution.

72. Defendants were at all times acting under the color of law and the color of their authority as New York City Police Officers.

73. As a direct and proximate result of the individually named police officer defendant's actions and omissions, Plaintiff has suffered damages, including but not limited to deprivation of liberty, pain and suffering, extreme mental and emotional distress, loss of income, costs and disbursements and other losses not yet ascertainable.

74. Plaintiff is informed and believes and thereon alleges that the defendants' actions were willful, malicious, intentional, oppressive, reckless, and/or were done in willful and conscious disregard of Plaintiff's rights, welfare and safety, thereby justifying damages against the Defendants in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

**SIXTH CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S FOURTH AND
FOURTEENTH AMENDMENT RIGHTS**

75. The plaintiff repeats, reiterates and realleges each and every allegation set forth above with the same force and effect as if more fully set forth at length herein.

76. The use of excessive force by defendants by grabbing plaintiff without his consent, and throwing him down to the ground, punching him in the face, hitting him all over his body with batons, and tasing the Plaintiff while he was on the ground, causing him to suffer serious physical injuries was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United

States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

77. Defendants were at all times acting under the color of law and the color of their authority as New York City Police Officers.

78. As a direct and proximate result of the individually named police officer defendant's actions and omissions, Plaintiff has suffered damages, including but not limited to deprivation of liberty, pain and suffering, extreme mental and emotional distress, loss of income, costs and disbursements and other losses not yet ascertainable.

79. Plaintiff is informed and believes and thereon alleges that the defendants' actions were willful, malicious, intentional, oppressive, reckless, and/or were done in willful and conscious disregard of Plaintiff's rights, welfare and safety, thereby justifying damages against the Defendants in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

SEVENTH CAUSE OF ACTION FOR FAILURE TO INTERVENE

80. The plaintiff repeats, reiterates and realleges each and every allegation set forth above with the same force and effect as if more fully set forth at length herein.

81. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

82. Defendants failed to intervene to prevent the unlawful conduct described herein.

83. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

84. Defendants were at all times acting under the color of law and the color of their authority as New York City Police Officers.

85. As a direct and proximate result of the individually named police officer defendant's actions and omissions, Plaintiff has suffered damages, including but not limited to deprivation of liberty, pain and suffering, extreme mental and emotional distress, loss of income, costs and disbursements and other losses not yet ascertainable.

86. Plaintiff is informed and believes and thereon alleges that the defendants' actions were willful, malicious, intentional, oppressive, reckless, and/or were done in willful and conscious disregard of Plaintiff's rights, welfare and safety, thereby justifying damages against the Defendants in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

JURY DEMAND

87. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Casey Clarke demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
December 5, 2018

By: *Caile Robin*

CAITLIN ROBIN &
ASSOCIATES PLLC.
CAITLIN ROBIN, ESQ.
Attorney for Plaintiff
30 Broad Street, Suite 702
New York, New York 10004
(646)-524-6026

TO: POLICE OFFICER STANLEY BAEZ
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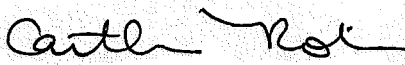
JOHN AND JANE DOE 1-10
47th Precinct
4111 Laconia Avenue
Bronx, NY 10466

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **CAITLIN ROBIN & ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
December 5, 2018


CAITLIN ROBIN, ESQ.